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UZBEKISTAN

Human Rights Developments

Human rights protections in Uzbekistan deteriorated rapidly and dramatically in 1999. Following the explosion of five bombs in the capital on February 16, police detained thousands of men. Police and security forces particularly targeted members of the political opposition and independent Muslims. Among the arrested were hundreds of members of Hizb-ut-Tahrir (Party of Liberation), an unregistered Islamic organization.

Nineteen men were sentenced to death following patently unfair show trials for their alleged participation in the February 16 bombings or other acts of violence. Others were given lengthy prison terms. Courts also doled out harsh sentences for members of Hizb-ut-Tahrir. Some were convicted purely on the basis of their religious beliefs while others had allegedly fabricated charges of narcotics or weapons possession brought against them.

Police and security forces used brutal tactics in carrying out the campaign. They systematically tortured defendants, using barbaric methods such as electric shock, beatings with batons, and temporary suffocation with a plastic bag, coined "the bag of death." There were several credible reports that authorities also threatened to rape defendants' family members if they did not sign self-incriminating statements.

The family members of independent religious or political leaders were singled out for harsh treatment by authorities. Female relatives of independent Imam Obidhon Nazarov, believed to be in hiding since March 1998, were briefly detained, as was the wife of an associate of Nazarov, Imam Tulkun Ergashev. Male relatives of Nazarov were imprisoned on allegedly fabricated charges, and it was reported that the imam's youngest brother, Abdumalik Nazarov, was sent to a prison in Karakalpakstan, said to be designed for religious prisoners and known as "the place from which no one returns." Relatives of men sought in connection with the February 16 bombings reported being detained and even tortured. At least two fathers were reportedly imprisoned because of charges against their sons. This was part of the implementation of the government's collective punishment policy in which, according to the minister of internal affairs, "fathers will suffer, too."

Azim Khodjaev, the father of two young men sought for alleged Islamic extremism, was convicted and imprisoned in Karakalpakstan. His body was returned to his family around July 14 and reportedly showed hideous signs of torture, including extracted fingernails. In July, authorities at the prison also reportedly tortured to death Jurakhon Azimov, a leader of the political opposition group, the Popular Movement Birlik (Unity), in Andijan. He had been sentenced to sixteen years in prison on May 5 after a trial that reportedly relied wholly on fabricated evidence of his "anti-state activities." Azimov's family saw his body after it was removed from the Karakalpakstan prison and reported that the left half of his face was smashed in beyond recognition, and his body was covered with large bruises and razor-blade cuts. Officials gave the cause of death as heart failure. Authorities in that prison reportedly tortured to death at least six other men in 1999.

Other shocking reports of death from torture came to light in 1999. Human Rights Watch viewed the body of Furkhat Usmanov, a young man who died in detention. His body showed unmistakable signs of torture, including severe bruising all over his body. Heart failure was the official cause of death.

Usmanov (age forty-two) had been detained just eleven days before his death for alleged possession of a Hizb-ut-Tahrir pamphlet. Other reports of deaths in custody, including those of a young Hizb-ut-Tahrir member in Tashkent, and two other orthodox Muslims in the Fergana Valley, followed the same pattern. The body of independent Imam Kobil Muradov spoke volumes of the treatment he apparently endured in pretrial detention. His injuries reportedly included broken ribs and a broken collarbone, missing teeth, and extensive bruising. Authorities gave disparate and unconvincing explanations for his death, first claiming that he had fallen from his bunk and later that fellow prisoners had beaten him to death.

The release in August of five Christians unjustly imprisoned in 1999 was seen as a positive development, although the timing of the releases appeared to be calculated to coincide with publication of the U.S. government's report on religious freedom. Those released included Rashid Turibayev of the Full Gospel Church in the Autonomous Republic of Karakalpakstan and two of his fellow worshipers, Parakhat Yangibayev and Eset Tanishev, all charged with illegal possession of narcotics. Authorities also accused Turibayev of violating a May 1998 law that imposed severe restrictions on permissible religious practice. That law also banned proselytism, the charge on which Ibrahim Yusupov, the head of a Pentacostal congregation in Tashkent, was convicted. Bukharan Pastor Na'il Asanov of the Church of Christ, who had been convicted in June for alleged illegal possession of narcotics, was released together with Yusupov in late August.

Secular figures as well as religious ones fell victim to state repression. Disregarding allegations of torture, an Uzbek court on August 18 convicted six men because of their alleged affiliation with Erk (Freedom), a political party founded in 1990 and banned by Uzbek authorities in December 1992. Its leader, Muhammad Solih, was the only candidate to run against President Islam Karimov in the presidential elections of 1991 and was forced into exile in 1994. The men—Muhammad Bekjanov, Rashid Bekjanov (Solih's brothers), Kobil Dierov, Mamadali Mahmudov, Ne'mat Sharipov, and Iusuf Ruzimuradov—were sentenced to prison terms ranging from eight to fifteen years for participation in a "criminal society" and for using the mass media to insult publicly the President of Uzbekistan, among other charges. The government publicly implicated Solih as a conspirator in the bombings, a charge he denied.

Freedom of expression and of the press continued to be severely restricted. There were no independent local journalists or media outlets functioning in the country. Government-controlled media were used as relentless propaganda tools to discredit independent Muslim groups, human rights activists, and members of the political opposition in Uzbekistan and abroad.

The Uzbek government dealt another blow to freedom of information in 1999 when it recentralized all internet providers in the country under one government umbrella agency. The move, establishing a government monopoly on that medium, was presumably designed to control access to and monitor internet communications.

Defending Human Rights

In 1999, the Uzbek government clamped down on human rights activists with unprecedented vigor and brutality. Over a dozen human rights defenders were detained, beaten, or otherwise harassed. Government-controlled local and national media routinely broadcast and printed propaganda to discredit rights defenders as "supporters of terrorism," "traitors," and "enemies of the state." The government's campaign appeared designed to silence activists' criticism of official policy and stop the flow of information to foreign governments, media, and other observers.

In June, Akhmadhon Turakhonov, a member of the Independent Human Rights Organization of Uzbekistan (IHROU), died in prison, apparently from diabetes that went untreated, following his conviction in March on politically motivated and wholly spurious charges.

Chairman of the IHROU, Mikhail Ardzinov, was savagely beaten and detained for over twelve hours by officers of the Ministry of Internal Affairs. They levied the spurious charge of "hooliganism" against him. Authorities denied Ardzinov access to a lawyer or medical exam and confiscated his passport, office equipment, and archive of human rights documents. A medical exam conducted by a

U.S. Embassy doctor the day after his release found that Ardzinov had suffered broken ribs, contused kidneys, and a concussion, in addition to cuts and bruises to the face.

On September 29, a district court condemned Ardzinov's colleague, Ismoil Adylov, to six years in prison. The trial was based on wholly spurious charges that Adylov possessed Hizb-ut-Tahrir leaflets and that he was guilty of anti-constitutional activities because of the ideas contained in those leaflets. Eyewitnesses reported that police had planted the religious literature in Adylov's home at the time of arrest. Authorities held him incommunicado for over twenty-four hours and denied him access to an attorney during the initial period of detention. Authorities continued to deny him medical treatment in detention for a chronic kidney ailment.

Just days after the arrest of Adylov in July, another IHROU member, Mahbuba Kasymova, was condemned to five years in prison. Her trial, on all counts a farce that lasted less than three hours, fell far short of international standards. The presiding judge denied Kasymova the right to counsel of her choice, failed to hear key witnesses, and ignored exculpatory testimony. The primary charge against Kasymova was that she had hidden a "criminal," Ravshan Hamidov, who was arrested at her home in May. Witnesses to the arrest reported that the police had planted religious leaflets, narcotics, and a grenade among Hamidov's belongings prior to his arrest, raising serious doubts about the charges against him. In any case, the state presented no evidence that Kasymova knew or should have known about Hamidov's alleged illegal activity.

In September 1998, authorities arrested Muidin Kurbanov, a member of the Human Rights Society of Uzbekistan (HRSU) chapter in Jizak. Police beat him repeatedly and questioned him about his human rights organization and the whereabouts of Imam Obidhon Nazarov. On the basis of fabricated charges, a judge sentenced him, without a lawyer or prosecutor present, to three years in prison. Kurbanov was released from prison in January 1999 under a presidential amnesty decree. Authorities in Jizak have since repeatedly harassed Kurbanov and threatened to charge him with membership in the Islamic organization Hizb-ut-Tahrir.

In October 1998, Tolib Yakubov, executive director of the HRSU, was brutally attacked by unidentified men while in Warsaw to attend the Organization for Security and Cooperation in Europe (OSCE) implementation meeting. It was believed the attack, which sent Yakubov to the hospital with severe injuries, was in retaliation for his outspoken criticism of Uzbekistan's rights record. In 1999, Yakubov reported that authorities forced him to attend a public "hate rally" they had organized in his home town, in which neighbors and local government officials showered him with insults and labeled him an "enemy of the state."

On April 11, Haidbai Yakubov, an HRSU member in Khorezm province, was detained for three hours by officers of the Urgench district police station. An investigator questioned Yakubov about his human rights activities and threatened to jail him if he did not name all who had sought his help. When Yakubov refused, a masked officer wielding a nightstick reportedly beat him repeatedly before he was finally released.

On July 16, Haidbai Yakubov accompanied a Human Rights Watch researcher on a field mission to the Autonomous Republic of Karakalpakstan. They were denied access to their destination and ordered to turn back to Khorezm. On the return trip, Yakubov and the Human Rights Watch researcher were repeatedly detained by police in Karakalpakstan and Khorezm. In the city of Khiva, the head of the police's criminal investigation team threatened to put Yakubov in jail. When asked what charges he could possibly bring, he reportedly responded, "We'll find something."

On the night of March 4, officers in plain clothes entered the home of independent activist Mukhtabar Akhmedova, confiscated her computer and other office equipment, and detained her. At the local police station, authorities accused her of assisting "Islamic terrorists" and sentenced her to ten days of administrative detention. Following her strenuous protests, the police released the sixty-year-old woman after twenty-four hours. First, however, they forced her to attend the public meeting they had organized in which she was labeled an "enemy of the state" and accused of complicity in the February 16 bombings. As of this writing, Akhmedova was at liberty; however, police threatened to charge her with anti-constitutional activities and refused to return her belongings.

The Role of the International Community

United Nations

International press reported in September that High Commissioner for Human Rights Mary Robinson met with Muhammad Solih, the exiled leader of the Uzbek opposition party Erk. During the meeting she reportedly expressed her deep concern regarding accounts of arrests and convictions of political and religious dissidents in Uzbekistan and stated that her office would conduct a mission to the country to investigate the allegations. In May, the United Nations Working Group on Enforced or Involuntary Disappearances considered the cases of six men-Mahmudov, Dierov, Sharipov, M. Bekjanov, R. Bekjanov, and Ruzimuradov-whose whereabouts were then unknown. The working group submitted these cases to the government of Uzbekistan and called on the proper officials to investigate the cases and ensure the protection of the men's rights. (For details on the fate of the six men, see above.)

Organization for Security and Cooperation in Europe (OSCE)

Although the OSCE increased its engagement in Central Asia, and in Uzbekistan in particular, the organization's message on human rights was not consistent. In April, OSCE Representative on Freedom of the Media Freimont Duve visited Uzbekistan, after which he reported to the Permanent Council that "there is, in Uzbekistan, a near absence of independent media," due in part to "the insidious effects of `structural censorship'." He also recounted his surprise visit to a government office where he found officials "perusing newspapers paragraph by paragraph for unacceptable coverage."

In May, the director of the Office for Democratic Institutions and Human Rights, Ambassador Gerard Stoudman, headed a delegation to Uzbekistan to assess conditions for upcoming parliamentary and presidential elections. The delegation concluded that the Uzbek government needed to undertake numerous reforms, including the registration of opposition parties and the establishment of independent media, in order to approach international standards. In meetings with President Karimov and other officials, Stoudman obtained assurances that the OSCE Central Asia Liaison Office would be provided with the correct names, places of detention, and charges of all detainees and arrestees-data not previously available. Unfortunately, the office failed to follow up with the government and had not received the promised information as of this writing. The chairman-in-office, during his visit to Uzbekistan in October, apparently also failed to make any progress on the OSCE initiative to obtain access for independent international monitors to prisons and other places of detention. As of October, no international monitors had access to Uzbekistan's prisons, believed to be among the worst in the region.

OSCE Chairman-in-Office Knut Volleb0k appointed Ambassador Wilhelm Hoyneck as his personal representative to develop proposals for coordinated and enhanced OSCE engagement in Central Asia. Hoyneck visited Uzbekistan in June and met with several government officials. Unfortunately, he declined to meet with any local or international human rights observers in the country. Chairman-in-Office Vollaebek visited Uzbekistan in early October, though he failed to press human rights concerns with the same vigor as the ODIHR delegation.

The Central Asia Liaison office in Tashkent continued its monitoring of human rights in Uzbekistan, making particular use of reports from local and international nongovernmental human rights organizations and participating in some trial monitoring activities.

European Union

On the occasion of the Uzbek foreign minister's address to the OSCE Permanent Council meeting in July, the European Union (E.U.) issued a demarche on human rights abuses that included a strong denunciation of the beating of rights defender Mikhail Ardzinov and the ongoing arrests of political and religious dissidents. In the September Permanent Council debate on the Hoyneck report, the E.U. again emphasized the importance of human rights improvements.

Nevertheless, the member states of the E.U. put into effect its Partnership and Cooperation Agreement with the Republic of Uzbekistan on July 1, 1999, ignoring the rapidly deteriorating human rights

situation in Uzbekistan. This agreement, which specifies respect for human rights as an essential element, awarded Uzbekistan preferential trade status and other potential economic benefits, despite the country's abysmal human rights record. In September, the E.U. held its first Cooperation Council meeting with Uzbekistan to consider that country's compliance with the agreement. Member states were expected to raise concerns regarding Uzbekistan's poor human rights record, including egregious cases of torture and death in detention.

United States

Senior government officials expressed dismay at Uzbekistan's continued practices of arbitrary and discriminatory arrests of religious Muslims and other forms of religious persecution. Stephen Sestanovich, ambassador-at-large for the Newly Independent States (NIS), visited Uzbekistan as part of the biannual meeting of the United States-Uzbekistan Joint Commission. He articulated U.S. concerns regarding the lack of progress on human rights issues. Also part of the delegation, the ambassador-at-large for international religious freedom, Robert Seiple, met with government officials to urge them to register unregistered religious groups. He discussed abuses against religious minorities and orthodox Muslims with religious leaders and human rights organizations. The U.S. Department of State's Annual Report on International Religious Freedom for 1999, issued in September, was sharply critical of Uzbekistan's record. The report stated categorically that "[t]he Government's record on respect for the right of religious freedom worsened during the period covered by this report" and that "[t]he most serious abuses of the right to religious freedom were committed against Muslim believers."

Despite harsh criticism of Uzbekistan's deplorable rights record and characterization of the government as "authoritarian," the U.S. allotted an estimated U.S.\$30 million in assistance to Uzbekistan in 1999, a major increase from the \$22 million in aid given in 1998. The appropriations request for the year 2000 signified another leap to \$40 million, a near doubling of U.S. assistance during a two-year period.

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